

Texas Intestacy Chart

Real property, descent and distribution at a glance · Texas Estates Code Chapter 201

Who inherits Texas real property when a person dies without a will. Read each row as the whole interest in that property, split among the heirs shown. Community property and separate property follow different rules, so characterize each asset first. One date runs through the community property rules: September 1, 1993, when the share passing to children changed. Citations are to the Texas Estates Code, Chapter 201.

Married person with children

COMMUNITY

Death before September 1, 1993

Probate Code § 45

$\frac{1}{2}$

Surviving spouse (own half)

$\frac{1}{2}$

Children, equally (decedent's half)

COMMUNITY

All children of the marriage, death on or after September 1, 1993

[Estates Code § 201.003\(b\)\(2\)](#)

All

Surviving spouse

COMMUNITY

A child from outside the marriage, death on or after September 1, 1993

[Estates Code § 201.003\(c\)](#)

$\frac{1}{2}$

Surviving spouse (own half)

$\frac{1}{2}$

Decedent's children (decedent's half)

SEPARATE

Separate real property, married with children

[Estates Code § 201.002\(b\)](#)

$\frac{2}{3}$

Children, outright

$\frac{1}{3}$

Children's remainder

Same in every case above. The surviving spouse holds a life estate in the one-third; the children take the remainder.

Married person with no children

Community property passes entirely to the surviving spouse (§ 201.003(b)(1)). Separate real property splits as shown.

SEPARATE

Survived by both parents

[Estates Code §§ 201.002\(c\), 201.001\(c\)](#)

$\frac{1}{2}$

Surviving spouse

$\frac{1}{4}$

Father

$\frac{1}{4}$

Mother

SEPARATE

Survived by one parent and siblings

[Estates Code §§ 201.002\(c\), 201.001\(d\)](#)

$\frac{1}{2}$

Surviving spouse

$\frac{1}{4}$

Surviving parent

$\frac{1}{4}$

Siblings

SEPARATE**Survived by one parent, no siblings**

[Estates Code §§ 201.002\(c\), 201.001\(d\)](#)

 $\frac{1}{2}$

Surviving spouse

 $\frac{1}{2}$

Surviving parent

SEPARATE**Survived by siblings, no parents**

[Estates Code §§ 201.002\(c\), 201.001\(e\)](#)

 $\frac{1}{2}$

Surviving spouse

 $\frac{1}{2}$

Siblings and their descendants

SEPARATE**No surviving parents or siblings**

[Estates Code § 201.002\(d\)](#)

All

Surviving spouse

Single, widowed, or divorced person

No surviving spouse. The entire estate passes as shown (§ 201.001).

Survived by children

[Estates Code § 201.001\(b\)](#)

All

Children and their descendants, equally

No children, both parents survive

[Estates Code § 201.001\(c\)](#)

 $\frac{1}{2}$

Father

 $\frac{1}{2}$

Mother

No children, one parent and siblings

[Estates Code § 201.001\(d\)\(1\)](#)

 $\frac{1}{2}$

Surviving parent

 $\frac{1}{2}$

Siblings and their descendants

No children or siblings, one parent

[Estates Code § 201.001\(d\)\(2\)](#)

All

Surviving parent

No children or parents, siblings survive

[Estates Code § 201.001\(e\)](#)

All

Siblings and their descendants

No children, parents, or siblings

[Estates Code § 201.001\(f\)](#)

 $\frac{1}{2}$

Paternal kindred

 $\frac{1}{2}$

Maternal kindred

Full statute text: [Texas Estates Code, Chapter 201](#). This chart shows real property. Separate *personal* property divides differently: with children the surviving spouse takes one-third and the children two-thirds (§ 201.002(b)); community personal property follows the same community rules shown above.

This chart covers Texas real property and is prepared for landmen and title professionals as a working field tool. It is not legal advice and does not substitute for the advice of qualified Texas oil and gas counsel. Distributions turn on the community or separate character of each asset and on facts such as prior marriages and predeceased heirs. A predeceased heir's share passes to that heir's descendants by representation. Complex or disputed heirship should be referred to a licensed Texas attorney. Citations are to the Texas Estates Code, effective January 1, 2014, which recodified the former Texas Probate Code.

